come to on the question. 1. If a *procurator* is appointed to bring an action for two things, and he brings an action for one, no *exceptio* on that ground will be admissible in bar of the action, and the matter will be properly before the court.

IV.

On proceedings taken on behalf of any corporation or against the same.

1 Gaius (*on the provincial Edict* 3) Associations and guilds and similar corporations are not allowed to be formed by all persons without discrimination; this is a thing which is kept within certain limits by statutes and decrees of the senate and imperial enactments. It is only in very few kinds of cases that such corporate bodies are allowed; for example, the power of constituting a corporation is permitted to partners in government *vectigalia*, as well as in gold mines, silver mines and salt mines. Moreover there are at Rome particular guilds whose corporate character has been established by senatorial decrees and imperial enactments, such as the guilds of bakers and of some others, also guilds of shipowners, and these last exist in the provinces as well. 1. Where any persons are permitted to constitute a corporation in the way of a guild or a company or any other body, they have the special right to have, like a municipal body, common property, a common chest, and an *actor* or *syndicus* by whose agency anything that has to be transacted and done on the general behalf can be transacted and done accordingly, as in a municipal body. 2. If nobody defends any action at law against the society, the proconsul declares that he will order such common property as they have to be taken into possession, and if, after due notice given, they do not bestir themselves to defend their case, he will order such property to be sold. It is moreover held that there is no *actor* or *syndicus* even when the *actor* is [only] absent or detained by ill-health or is incapable of acting. 3. If a stranger is disposed to defend the case of the corporation, the proconsul will allow him to do it, in accordance with the rule as to defending private persons, because, where this is done, the position of the corporation is improved.